

Ved Prakash v. President, U.P. Electricity Regulatory Commission

Allahabad High Court · Division Bench · 10 September 2014 · Writ - C No. 48575 of 2014 · **Writ disposed; liberty to approach Ombudsman under clause 7.10**

HEADNOTE

Mandamus was sought to the U.P. Electricity Regulatory Commission to decide a representation against a Consumer Forum order dated 8.5.2014. The Court accepted that the Commission has no role and that such a grievance lies to the Ombudsman under clause 7.10 of the Electricity Supply Code, 2005. The writ was disposed with liberty to apply to the Ombudsman, to be decided preferably within three months.

FACTUAL SUMMARY

Ved Prakash, proprietor of M/s Karan Aqua and Ice, sought a mandamus directing the U.P. Electricity Regulatory Commission to decide his representation against a decision indicated in a Consumer Forum order dated 8 May 2014. Counsel for respondent no. 3 submitted that the Commission has no role and that any such grievance lies only to the Ombudsman under clause 7.10 of the Electricity Supply Code, 2005. The Division Bench did not examine the underlying dispute.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

ombudsman-forum

HOLDING

A grievance of the kind raised in the petitioner's representation against the Consumer Forum decision is not for the U.P. Electricity Regulatory Commission; it is to be raised before the Ombudsman under clause 7.10 of the Electricity Supply Code, 2005. The writ is disposed with liberty to apply to the Ombudsman, who shall dispose of the claim expeditiously, preferably within three months of production of a certified copy of this order. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances

The Court treated a representation against a Consumer Forum decision as a clause 7.10 Ombudsman grievance and held the Regulatory Commission has no role. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE REPRESENTATION AND OF THE CONSUMER FORUM ORDER DATED 8.5.2014

Writ disposed only with liberty to apply to the Ombudsman; the underlying dispute was not examined. ¶ 1